

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY  
MARTINEZ, CA  
DEPARTMENT 34, RICHMOND  
JUDICIAL OFFICER: LEONARD E MARQUEZ  
HEARING DATE: 11/25/2025

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN DEPARTMENT  
34

The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 ([Dept34@contracosta.courts.ca.gov](mailto:Dept34@contracosta.courts.ca.gov)) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED  
THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER  
ABOVE.  
Zoom link-

[https://contracosta-courts-  
ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhIdz09](https://contracosta-courts-ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhIdz09)

Meeting ID: 161 108 5023  
Passcode: 869677

**Law & Motion**

**1. 9:00 AM CASE NUMBER: L21-05922**

**CASE NAME: LIBERTY MUTUAL FIRE INSURANCE COMPANY VS. RACHEL SMITH**

**\*HEARING ON MOTION IN RE: MOTION TO ENFORCE SETTLEMENT AND ENTER JUDGMENT FILE BY  
PLN ON 08/20/2025**

**FILED BY: LIBERTY MUTUAL FIRE INSURANCE COMPANY,**

**\*TENTATIVE RULING:\***

Plaintiff Liberty Mutual Fire Insurance Company (“Plaintiff”) filed a Motion to Enforce Settlement Agreement and Enter Judgment on August 20, 2025 (“Motion to Enter Stipulated Judgment after Default”). The Motion to Enter Stipulated Judgment after Default was set for hearing on November 25, 2025.

#### Background

The parties entered into that certain settlement agreement on or about October 26, 2022 (the “Settlement Agreement”), the terms of which included payment by the defendant Rachel Smith (“Defendant”) in the amount of \$6,823.54 to be paid in accordance with the terms thereof (the “Payment Terms and Conditions”). See Declaration of Brian P. Tapper filed August 20, 2025 as part of Motion to Enter Stipulated Judgment after Default (“Supporting Declaration”), ¶2 and **Exhibit A** thereto. As part of the Settlement Agreement, the parties entered into a stipulation for entry of judgment in the event of a default, including interest and court costs. *Id.*, **Exhibit A**, ¶¶1-8.

Defendant defaulted on the Payment Terms and Conditions. See Supporting Declaration, ¶3. No notice or opportunity to cure is required under Settlement Agreement. Settlement Agreement, ¶5-7. After credit for amounts paid, there remains \$6,123.54 principal due and owing, plus \$1,947.79 prejudgment interest at the rate of 10% per annum and costs of \$225.00. See Supporting Declaration, ¶¶3-5.

#### Analysis

Defendant was duly served with the motion. The motion is unopposed.

#### Disposition

The Court finds and orders as follows:

1. The Court finds that Defendant was duly served with the motion.
2. The Court finds that Defendant is in default of the Settlement Agreement.
3. The Motion to Enter Stipulated Judgment after Default is GRANTED. Plaintiff shall have judgment against Defendant in the principal amount of \$8,071.33, plus costs of \$225.00, for a total judgment of \$8,296.33.
4. Plaintiff’s submitted form of order and/or money judgment against Defendant will be entered by the Court. Any prior dismissal entered herein against the Defendant is hereby set aside in connection with entry of such judgment.

**CASE NAME: AMERICAN EXPRESS NATIONAL BANK VS. CHETT SALZMAN**

**\*HEARING ON MOTION IN RE: MOTION TO ENTER JUDGMENT FILED BY PLN ON 09/12/2025**

**FILED BY: AMERICAN EXPRESS NATIONAL BANK**

**\*TENTATIVE RULING:\***

Plaintiff American Express National Bank (“Plaintiff”) filed a Motion to Enter Judgment on September 12, 2025 (“Motion to Enter Stipulated Judgment after Default”). The Motion to Enter Stipulated Judgment after Default was set for hearing on November 25, 2025.

#### Background

The parties entered into that certain settlement agreement filed on July 11, 2023 (the “Settlement Agreement”), the terms of which included a stipulation for entry of judgment in the amount of \$7,869.86 plus costs, less any credits, in the event of a default by the defendant Chett Salzman (“Defendant”) in the payment of a reduced amount of \$5,945.00, to be paid in accordance with the terms thereof (the “Payment Terms and Conditions”). See Declaration of Plaintiff’s Counsel filed September 12, 2025 (“Supporting Declaration”), ¶¶5-6 and **Exhibit A** thereto. As part of the Settlement Agreement, the parties entered into a stipulation for entry of judgment in the event of a default. *Id.*, **Exhibit A**, ¶¶2, 9 and 10.

Defendant defaulted on the Payment Terms and Conditions. See Supporting Declaration, ¶7. Defendant failed to cure after notice. *Id.* at ¶8 and **Exhibit B** thereto.

After credit for amounts paid, there remains \$2,167.35 due and owing, plus costs of \$367.90. See Supporting Declaration, ¶¶6-7; see Memorandum of Costs filed September 12, 2025.

#### Analysis

Defendant was duly served with the motion. The motion is unopposed.

#### Disposition

The Court finds and orders as follows:

1. The Court finds that Defendant was duly served with the motion. **However, THE PARTIES ARE ORDERED TO APPEAR to confirm whether Defendant was duly served with the motion papers *which contained notice of the hearing information at the time of service or if separate notice of the hearing date was otherwise subsequently given.***
2. The Court finds that Defendant is in default of the Settlement Agreement.
3. Subject to Paragraph 1 above, the Motion to Enter Stipulated Judgment after Default is GRANTED. Plaintiff shall have judgment against Defendant in the principal amount of \$2,167.35, plus costs of \$367.90, for a total judgment of \$2,535.25.
4. Plaintiff’s submitted form of order and/or money judgment against Defendant will be entered by the Court. Any prior dismissal entered herein against the Defendant is hereby set aside in connection with entry of such judgment.

**3. 9:00 AM CASE NUMBER: L24-00582**  
**CASE NAME: WELLS FARGO BANK, N.A. VS. MARCO SALMERON**  
**\*HEARING ON MOTION IN RE: MOTION FOR JUDGMENT ON PLEADINGS AND NONAPPEARANCE**  
**FILED BY PLN ON 09/16/2025**  
**FILED BY: WELLS FARGO BANK, N.A.**  
**\*TENTATIVE RULING:\***

Plaintiff Wells Fargo Bank, N.A. (“Plaintiff”) filed a Motion for Judgment on the Pleadings on September 16, 2025 (the “Motion for Judgment on the Pleadings”). The Motion for Judgment on the Pleadings was set for hearing on November 25, 2025.

#### Background

The Motion for Judgment on the Pleadings is based on the contention that the operative complaint states facts sufficient to constitute a cause of action and the answer does not state facts sufficient to constitute a defense. Plaintiff contends that defendant Marco Salmeron (the “Defendant”) admits all statements in the complaint are true and that Defendant owes the alleged debt.

#### Analysis

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) (“Rutter Civ. Pro.”) § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., § 7:291. Matters that may be judicially noticed include a party’s admissions or concessions which cannot reasonably be controverted. *Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989-990.

Plaintiff’s Complaint alleges causes of action for Breach of Contract and Common Counts (Open Book Account, Account Stated, Money Had and Received, Goods Sold and Delivered, Money Lent and Money Paid at Defendant’s Special Instance and Request) based on the allegation that Defendant became indebted in the amount of \$13,912.29 on a credit card account. See Complaint filed January 24, 2024, p. 2, ¶¶8 and 10 and Attachments (1st and 2nd Causes of Action).

Defendant’s Answer was filed June 18, 2024. The Answer denies the allegations of the Complaint and states various affirmative defenses. See Answer filed June 18, 2024.

Later, Plaintiff filed a motion to deem the truth of matters admitted in a set of Request for Admissions (the “RFAs”) served on Defendant which was granted by the Court. See Order entered July 3, 2025 (the “Deemed Admitted Order”). The Court takes judicial notice of the Deemed Admitted Order and the underlying court filings in connection with the Deemed

#### Admitted Order.

Based upon the Deemed Admitted Order, it is evident that Defendant has been deemed to admit to the fact of the subject debt and the amount owing, \$13,912.29. See Deemed Admitted Order; see also RFAs attached to Declaration of Pearse F. Early filed March 17, 2025, attached as part of **Exhibit B** to the Request for Judicial Notice filed September 16, 2025 (“RJN”).

Those admissions are binding upon Defendant for purposes of a motion for judgment on the pleadings. *Myers v. Trendwest Resorts, Inc.* (2009) 178 Cal.App.4th 735, 746 (“Judicial admissions may be made in a pleading, by stipulation during trial, or by response to request for admission.”).

While the Defendant pled denials and defenses by way of the Answer, Defendant failed to raise those issues timely in response to the requests for admissions and the Deemed Admitted Order has been made by the Court and has not been set aside. Nor has Defendant opposed this Motion for Judgment on the Pleadings.

Arguably, the RFAs do not contain a catch all admission to the effect that there is no cognizable defense to the liability that would negate all of the pled affirmative defenses. See Code Civ. Proc. § 438(c)(1)(A) (“[i]f the moving party is a plaintiff,” a motion for judgment on the pleadings may be made on the grounds that “...the complaint states facts sufficient to constitute a cause or causes of action against the defendant **and the answer does not state facts sufficient to constitute a defense to the complaint.**”) (Emphasis added).

While some of the affirmative defenses are expressly negated by the admissions made as part of the Deemed Admitted Order, others are not. For example, the Answer pleads the defenses of laches and estoppel. See Answer, p. 2, ¶4. There is no RFA which admitted that any of those particular affirmative defenses is without merit or otherwise constituted any admission that all of the pled affirmative defenses are without merit. See RJN, **Exhibit B**, RFAs Nos. 1 through 10. There is an RFA that constitutes an admission that “If YOU have CREDIT DEFENSE, admit that YOU do not qualify for its benefits.” See *id.* at RFA No. 10. However, as defined, it is evident that the term “CREDIT DEFENSE” only refers to “any debt cancellation agreement between YOU and PLAINTIFF...” See *id.* at RFA No. 9.

Nonetheless, the Court concludes here that the admission made to the effect that “YOU owe this propounding party” implies an admission of no cognizable defense to the liability, especially in the absence of any opposition and showing to the contrary by Defendant.

Having considered the moving papers and any further pleadings submitted, the Court makes the following findings:

1. Plaintiff’s Complaint, on its face and considering the Deemed Admitted Order, states facts sufficient to constitute causes of action against the Defendant for Breach of Contract (1st Cause of Action) and Common Counts (2nd Cause of Action). As to the 2nd Cause of Action for Common Counts, the Court finds that pleadings are sufficient to constitute a cause of action based on a theory of Open

Book Account, Account Stated and Money Lent. The Court need not consider the other alternative theories of liability (Money Had and Received, Goods Sold and Delivered, and Money Paid at Defendant's Special Instance and Request).

2. The Court further finds that the pleadings, in light of the Deemed Admitted Order, do not state facts sufficient to constitute a defense to the Complaint, as to Plaintiff's 1st Cause of Action and 2nd Cause of Action.
3. Defendant became indebted in the amount of \$13,912.29 on the subject credit card account, which amount is due and owing to Plaintiff.

#### Costs

No memorandum of costs was filed as part of the moving papers. Any recoverable costs may be sought by a timely filed memorandum of costs or otherwise in accordance with applicable law.

#### Disposition

The Court finds and orders as follows:

1. The Motion for Judgment on the Pleadings is GRANTED.
2. A proposed form of order was lodged with the Court which the Court shall execute and enter.

**4. 9:00 AM CASE NUMBER: L24-03014**  
**CASE NAME: CAPITAL ONE, N.A. VS. KAREN JEFFERSON**  
**\*HEARING ON MOTION IN RE: MOTION FOR JUDGMENT ON PLEADINGS FILED BY PLN ON**  
**09/09/2025**  
**FILED BY: CAPITAL ONE, N.A.**  
**\*TENTATIVE RULING:\***

Plaintiff Capital One, N.A. ("Plaintiff") filed a Motion for Judgment on the Pleadings on September 9, 2025 (the "Motion for Judgment on the Pleadings"). The Motion for Judgment on the Pleadings was set for hearing on November 25, 2025.

#### Background

The Motion for Judgment on the Pleadings is based on the contention that the operative complaint states facts sufficient to constitute a cause of action and the answer does not state facts sufficient to constitute a defense. Plaintiff contends that defendant Karen L Jefferson (the "Defendant") admits all statements in the complaint are true and that Defendant owes the alleged debt.

#### Analysis

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the defendant and

the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) (“Rutter Civ. Pro.”) § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., § 7:291. Matters that may be judicially noticed include a party’s admissions or concessions which cannot reasonably be controverted. *Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989-990.

Plaintiff’s Complaint alleges causes of action for Common Counts (Account Stated, Unjust Enrichment/Money Paid at Defendant’s Special Instance and Request) based on the allegation that Defendant became indebted in the amount of \$10,548.81 on an account. See Complaint filed April 12, 2024, p. 2, ¶¶8 and 10 and Attachments (1st Cause of Action).

Defendant’s Answer was filed October 2, 2024. The Answer denies the allegations of the Complaint and states various affirmative defenses. See Answer filed October 2, 2024.

Later, Plaintiff filed a motion to deem the truth of matters admitted in a set of Request for Admissions (the “RFAs”) served on Defendant which was granted by the Court. See Order entered July 3, 2025 (the “Deemed Admitted Order”). The Court takes judicial notice of the Deemed Admitted Order and the underlying court filings in connection with the Deemed Admitted Order.

Based upon the Deemed Admitted Order, it is evident that Defendant has been deemed to admit to the fact of the subject debt and the amount owing, \$10,548.81. See Deemed Admitted Order; see also RFAs attached as **Exhibit 1** to the Request for Judicial Notice filed September 9, 2025 (“RJN”).

Those admissions are binding upon Defendant for purposes of a motion for judgment on the pleadings. *Myers v. Trendwest Resorts, Inc.* (2009) 178 Cal.App.4th 735, 746 (“Judicial admissions may be made in a pleading, by stipulation during trial, or by response to request for admission.”).

While the Defendant pled denials and defenses by way of the Answer, Defendant failed to raise those issues timely in response to the requests for admissions and the Deemed Admitted Order has been made by the Court and has not been set aside. Nor has Defendant opposed this Motion for Judgment on the Pleadings.

Arguably, the RFAs do not contain a catch all admission to the effect that there is no cognizable defense to the liability that would negate all of the pled affirmative defenses. See Code Civ. Proc. § 438(c)(1)(A) (“[i]f the moving party is a plaintiff,” a motion for judgment on the pleadings may be made on the grounds that “...the complaint states facts sufficient to constitute a cause or causes of action against the defendant **and the answer does not state facts sufficient to constitute a defense to the complaint.**”) (Emphasis added).

While some of the affirmative defenses are expressly negated by the admissions made as part of the Deemed Admitted Order, others are not. For example, the Answer pleads the defenses of “Unjust Enrichment.” See Answer, p. 3. There is no RFA which admitted that

this particular affirmative defense is without merit or otherwise constituted any admission that all of the pled affirmative defenses are without merit. See RJN, **Exhibit 1**, RFAs Nos. 1 through 13.

Nonetheless, the Court concludes here that the admissions made to the effect that “[t]he principal amount of \$10,548.81 due set forth in the Complaint filed in this matter is correct” and “[e]very statement or allegation contained in Plaintiff's Complaint is true and correct” necessarily encompass an admission of no cognizable defense to the liability, especially in the absence of any opposition and showing to the contrary by Defendant.

Having considered the moving papers and any further pleadings submitted, the Court makes the following findings:

1. Plaintiff's Complaint, on its face and considering the Deemed Admitted Order, states facts sufficient to constitute causes of action against the Defendant for Common Counts (1st Cause of Action). As to the 1st Cause of Action for Common Counts, the Court finds that pleadings are sufficient to constitute a cause of action based on a theory of Account Stated. The Court need not consider the other alternative theories of liability.
2. The Court further finds that the pleadings, in light of the Deemed Admitted Order, do not state facts sufficient to constitute a defense to the Complaint, as to Plaintiff's 1st Cause of Action.
3. Defendant became indebted in the amount of \$10,548.81 on the subject credit card account, which amount is due and owing to Plaintiff.

#### Costs

The moving papers seek an award of recoverable costs in the sum of \$777.00. However, it does not appear that any Memorandum of Costs or other supporting declaration(s) regarding costs were filed as part of the moving papers. Any recoverable costs may be sought by a timely filed Memorandum of Costs or otherwise in accordance with applicable law.

#### Disposition

The Court finds and orders as follows:

1. The Motion for Judgment on the Pleadings is GRANTED.
2. A proposed form of order was lodged with the Court which the Court shall execute and enter.

5. 9:00 AM CASE NUMBER: L24-08852  
CASE NAME: TWO JINN, INC. VS. SOPHIA GARCIA  
\*HEARING ON MOTION IN RE: MOTION TO DEEM FACTS ADMITTED FILE BY PLN ON 08/28/2025  
FILED BY: TWO JINN, INC.



**\*TENTATIVE RULING:\***

Plaintiff Two Jinn, Inc. (“Plaintiff”) filed a Motion to Deem Facts as Admitted or in the Alternative to Compel Responses and Impose Monetary Sanctions on August 28, 2025 (the “Motion to Deem Admissions”). The Motion to Deem Admissions was set for hearing on November 25, 2025. The motion is unopposed.

**Background**

Plaintiff served Defendant Sophia Garcia (“Defendant”) with a Requests for Admission (Set One). See Declaration of Nathan A. Melendrez filed August 28, 2025 (“Supporting Declaration”), ¶3 and **Exhibit A** thereto (the “RFAs”). The RFAs were served on April 29, 2025 by mail. *Id.* at ¶3 and **Exhibit A** [attached Proof of Service dated April 29, 2025 (the “Proof of Service”)].

With a five calendar day extension for service of the RFAs by mail, the responses were due to be served on or before June 3, 2025 (30 days from and after April 29, 2025 was May 29, 2025 and five calendar days thereafter fell on June 3, 2025). No responses were received by that deadline. See *id.* at ¶3. Despite meet and confer efforts, no responses were received through the time of the filing of the motion. See *id.* at ¶¶4-5 and **Exhibit B**.

**Analysis**

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b). The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777.

Having considered the moving papers and any further pleadings submitted, the Court makes the following findings as to the discovery requests at issue:

1. Defendant was duly served with the subject RFAs.
2. No timely response was made to the RFAs by Defendant.
3. Plaintiff engaged in meet and confer efforts and Defendant did not respond to those

communications and did not provide responses to the RFAs.

4. No opposition or other responsive pleadings by Defendant have been filed with the Court.

#### Sanctions

1. Defendant's failure to respond to the RFAs even after the deadline to do so had passed and demands for responses were made constitutes failing to respond to an authorized method of discovery, pursuant to Code of Civil Procedure section 2023.010(d).
2. Defendant's failure to respond to meet and confer efforts regarding the RFAs constitutes failing to confer with an opposing party or attorney in a reasonable and good faith attempt to resolve informally any dispute concerning discovery, pursuant to Code of Civil Procedure section 2023.010(i).
3. The Court finds that the foregoing conduct by Defendant constituted conduct that was a misuse of the discovery process within the meaning of Code of Civil Procedure section 2023.030 and that such conduct warrants the imposition of monetary sanctions. In failing to timely respond to the RFAs, the Court finds that Defendant did not act with substantial justification.
4. Moreover, monetary sanctions are mandatory pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(c).

#### Disposition

The Court further finds and orders as follows:

1. The Court finds that Defendant was duly served with the motion papers. **However, THE PARTIES ARE ORDERED TO APPEAR to confirm whether Defendant was duly served with the motion papers *which contained notice of the hearing information at the time of service or if separate notice of the hearing date was otherwise subsequently given.***
2. Subject to Paragraph 1 above, the Motion to Deem Admissions is GRANTED, as follows:
  - a. The truth of the facts recited in RFA Nos. 1 through 3 and 5 through 18 are DEEMED ADMITTED by Defendant.
  - b. The genuineness of the document attached as Exhibit A to the RFAs, pursuant to RFA No. 4, is DEEMED ADMITTED by Defendant.
  - c. Defendant shall pay monetary sanctions to Plaintiff in the amount of **\$310.00** (the "Monetary Sanctions"). The Court finds that the Monetary Sanctions are reasonable expenses, including attorneys' fees, incurred by Plaintiff as a result of the foregoing conduct by Defendant. In fixing said amount, the Court has considered all evidence in the record before the Court, including the Supporting Declaration. The Monetary Sanctions shall be paid within

thirty (30) days from notice of entry of this order.

3. A proposed form of order was lodged with the Court which the Court shall execute and enter.

6. 9:00 AM CASE NUMBER: L24-09342

CASE NAME: WELLS FARGO BANK, N.A. VS. MARTIN GONZALEZ

\*HEARING ON MOTION FOR DISCOVERY MOTION TO DEEM REQUESTS FOR ADMISSION AND NONAPPEARANCE FILED BY PLN ON 08/19/2025

FILED BY: WELLS FARGO BANK, N.A.

**\*TENTATIVE RULING:\***

Plaintiff Wells Fargo Bank, N.A. (“Plaintiff”) filed a Motion to Deem Requests for Admissions Admitted on August 19, 2025 (the “Motion to Deem Admissions”). The Motion to Deem Admissions was set for hearing on November 25, 2025. The motion is unopposed.

#### Background

Plaintiff served Defendant Martin Gonzalez (“Defendant”) with a Requests for Admission (Set One). See Declaration of Douglas Agne filed August 19, 2025 (“Supporting Declaration”), ¶1 and **Exhibit A** thereto (the “RFAs”). The RFAs were served on February 27, 2025 by mail. *Id.* at ¶1 and **Exhibit A** [attached Declaration of Service dated February 27, 2025 (the “Proof of Service”)].

With a five calendar day extension for service of the RFAs by mail, the responses were due to be served on or before April 3, 2025 (30 days from and after February 27, 2025 was March 29, 2025 and five calendar days thereafter fell on April 3, 2025). No responses were received by that deadline or through the time of the filing of the motion. See *id.* at ¶12.

#### Analysis

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b). The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section

2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777.

Having considered the moving papers and any further pleadings submitted, the Court makes the following findings as to the discovery requests at issue:

1. Defendant was duly served with the subject RFAs.
2. No timely response was made to the RFAs by Defendant.
3. No opposition or other responsive pleadings by Defendant have been filed with the Court.

#### Sanctions

Plaintiff does not seek imposition of sanctions.

#### Disposition

The Court further finds and orders as follows:

1. The Motion to Deem Admissions is GRANTED.
2. The truth of the facts recited in RFA Nos. 1 through 6 and RFA Nos. 8 through 11 are DEEMED ADMITTED by Defendant.
3. The genuineness of the document attached as Exhibit A to the RFAs, pursuant to RFA No. 7, is DEEMED ADMITTED by Defendant.
4. A proposed form of order was lodged with the Court which the Court shall execute and enter.

**7. 9:00 AM CASE NUMBER: L24-09762**  
**CASE NAME: WELLS FARGO BANK, N.A. VS. MOHAMMAD KHESRAWI**  
**\*HEARING ON MOTION IN RE: MOTION FOR JUDGMENT ON PLEADINGS FILE BY PLN ON**  
**09/02/2025**  
**FILED BY: WELLS FARGO BANK, N.A.**  
**\*TENTATIVE RULING:\***

Plaintiff Wells Fargo Bank, N.A. ("Plaintiff") filed a Motion for Judgment on the Pleadings on September 2, 2025 (the "Motion for Judgment on the Pleadings"). The Motion for Judgment on the Pleadings was set for hearing on November 25, 2025.

#### Background

The Motion for Judgment on the Pleadings is based on the contention that the operative complaint states facts sufficient to constitute a cause of action and the answer does not state facts sufficient to constitute a defense. Plaintiff contends that defendant Mohammad Khesrawi (the "Defendant") admits all statements in the complaint are true and that Defendant owes the alleged debt.

#### Analysis

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) (“Rutter Civ. Pro.”) § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., § 7:291. Matters that may be judicially noticed include a party’s admissions or concessions which cannot reasonably be controverted. *Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989-990.

Plaintiff’s Complaint alleges causes of action for Breach of Contract based on the allegation that Defendant became indebted in the amount of \$9,331.56 on a credit card account. See Complaint filed November 8, 2024, p. 2, ¶¶8 and 10 and Attachments (1st and 2nd Causes of Action).

Defendant’s Answer was filed January 28, 2025. The Answer admits the allegations of the Complaint but also states that Defendant denies the allegations of the Complaint regarding the “specific numbers” and amounts claimed, as well as stating a purported affirmative defense of “financial difficulty.” See Answer filed January 28, 2025.

Later, Plaintiff filed a motion to deem the truth of matters admitted in a set of Request for Admissions (the “RFAs”) served on Defendant which was granted by the Court. See Order entered August 20, 2025 (the “Deemed Admitted Order”). The Court takes judicial notice of the Deemed Admitted Order and the underlying court filings in connection with the Deemed Admitted Order.

Based upon the Deemed Admitted Order, it is evident that Defendant has been deemed to admit to the fact of the subject debt and the amount owing, \$9,331.56. See Deemed Admitted Order; see also RFAs attached to Request for Judicial Notice filed September 2, 2024 (the “RJN”), as part of Exhibit 2 including the Declaration of David Bartley filed December 19, 2024, Exhibit 1.

Those admissions are binding upon Defendant for purposes of a motion for judgment on the pleadings. *Myers v. Trendwest Resorts, Inc.* (2009) 178 Cal.App.4th 735, 746 (“Judicial admissions may be made in a pleading, by stipulation during trial, or by response to request for admission.”).

While the Defendant pled denials and defenses by way of the Answer, Defendant failed to raise those issues timely in response to the requests for admissions and the Deemed Admitted Order has been made by the Court and has not been set aside. The RFAs include an admission that “[y]ou do not have any defenses to Plaintiff’s Complaint.” See RFAs, No. 9. Nor has Defendant opposed this Motion for Judgment on the Pleadings.

Having considered the moving papers and any further pleadings submitted, the Court makes the following findings:

1. Plaintiff’s Complaint, on its face and considering the Deemed Admitted Order, states facts sufficient to constitute causes of action against the Defendant for

Breach of Contract (1st Cause of Action and 2nd Cause of Action).

2. The Court further finds that the pleadings, in light of the Deemed Admitted Order, do not state facts sufficient to constitute a defense to the Complaint, as to Plaintiff's 1st Cause of Action and 2nd Cause of Action.
3. Defendant became indebted in the amount of \$9,331.56 on the subject credit card account, which amount is due and owing to Plaintiff.

#### Costs

The moving papers seek an award of recoverable costs in the sum of \$285.00. However, it does not appear that any Memorandum of Costs or other supporting declaration(s) regarding costs were filed as part of the moving papers. Any recoverable costs may be sought by a timely filed Memorandum of Costs or otherwise in accordance with applicable law.

#### Disposition

The Court finds and orders as follows:

1. The Motion for Judgment on the Pleadings is GRANTED.
2. A proposed form of order was lodged with the Court which the Court shall execute and enter.

8. 9:00 AM CASE NUMBER: L24-11084

CASE NAME: WELLS FARGO BANK, N.A. VS. ZENAIDA SMITH

**\*HEARING ON MOTION FOR DISCOVERY MOTION TO DEEM REQUESTS FOR ADMISSIONS AND NONAPPEARANCE FILED BY PLN ON 09/15/2025**

**FILED BY: WELLS FARGO BANK, N.A.**

**\*TENTATIVE RULING:\***

Plaintiff Wells Fargo Bank, N.A. ("Plaintiff") filed a Motion to Deem Requests for Admissions Admitted on September 15, 2025 (the "Motion to Deem Admissions"). The Motion to Deem Admissions was set for hearing on November 25, 2025. The motion is unopposed.

#### Background

Plaintiff served Defendant Zenaida M Smith ("Defendant") with a Requests for Admission (Set One). See Declaration of Douglas Agne filed September 15, 2025 ("Supporting Declaration"), ¶1 and **Exhibit A** thereto (the "RFAs"). The RFAs were served on June 3, 2025 by email. *Id.* at ¶1 and **Exhibit A** [attached Proof of Service dated June 3, 2025 (the "Declaration of Service")].

With a five calendar day extension for service of the RFAs by mail, the responses were due to be served on or before July 8, 2025 (30 days from and after June 3, 2025 was July 3, 2025 and two court calendar days thereafter fell on July 8, 2025). No responses were received by

that deadline. See *id.* at ¶12. Despite meet and confer efforts, no responses were received through the time of the filing of the motion. See *id.* at ¶13.

#### Analysis

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b). The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777.

Having considered the moving papers and any further pleadings submitted, the Court makes the following findings as to the discovery requests at issue:

1. Defendant was duly served with the subject RFAs.
2. No timely response was made to the RFAs by Defendant.
3. Plaintiff engaged in meet and confer efforts and Defendant did not respond to those communications and did not provide responses to the RFAs.
4. No opposition or other responsive pleadings by Defendant have been filed with the Court.

#### Sanctions

Plaintiff does not seek imposition of sanctions.

#### Disposition

The Court further finds and orders as follows:

1. The Motion to Deem Admissions is GRANTED.
2. The truth of the facts recited in RFA Nos. 1 through 6 and RFA Nos. 8 through 11 are DEEMED ADMITTED by Defendant.
3. The genuineness of the document attached as Exhibit A to the RFAs, pursuant to RFA No. 7, is DEEMED ADMITTED by Defendant.
4. A proposed form of order was lodged with the Court which the Court shall execute

and enter.

**9. 9:00 AM CASE NUMBER: L25-01401**  
**CASE NAME: JPMORGAN CHASE BANK, N.A. VS. ALLEN BREZAC**  
**\*HEARING ON MOTION IN RE: MOTION TO BE RELIEVED AS COUNSEL FILED BY DEF ATTY ON 08/25/2025**  
**FILED BY: BREZAC, ALLEN**  
**\*TENTATIVE RULING:\***

Clinton Rooney of the Huron Legal Group, P.C. (“Counsel”) filed a Motion to be Relieved as Counsel on August 25, 2025 (the “Motion to be Relieved as Counsel”). The matter was set for hearing on November 25, 2025.

Background

Counsel seeks to be relieved as attorneys for defendant Allen Brezac (“Defendant”).

The supporting declaration filed by Counsel indicates that there has been a breakdown in the attorney-client relationship in a manner that “precludes further representation.” See Declaration filed August 25, 2025, ¶2. Defendant has been given notice of the Motion to be Relieved as Counsel. *Id.* at ¶3.

Analysis

The Motion to be Relieved as Counsel is unopposed.

Disposition

The Court finds and rules as follows:

1. The Motion to be Relieved as Counsel is GRANTED.
2. The Court shall issue the order after hearing.

**10. 9:00 AM CASE NUMBER: L25-04349**  
**CASE NAME: WELLS FARGO BANK, NA VS. PEDRO GARCIA**  
**\*HEARING ON MOTION FOR DISCOVERY**  
**FILED BY: WELLS FARGO BANK, NA**  
**\*TENTATIVE RULING:\***

Plaintiff Wells Fargo Bank, N.A. (“Plaintiff”) filed a Motion for an Order Deeming the Truth of the Matters Specified in Plaintiff’s Request for Admissions as Admitted on September 4, 2025 (the “Motion to Deem Admissions”). The Motion to Deem Admissions was set for hearing on November 25, 2025. The motion is unopposed.

Background



Plaintiff served Defendant Pedro C Garcia (“Defendant”) with a Requests for Admission (Set One). See Declaration of Edgar B. Lopez filed September 4, 2025 (“Supporting Declaration”), ¶2 and **Exhibit 1** thereto (the “RFAs”). The RFAs were served on July 16, 2025 by mail. *Id.* at ¶2 and **Exhibit 1** [attached Proof of Service dated July 16, 2025 (the “Proof of Service”)].

With a five calendar day extension for service of the RFAs by mail, the responses were due to be served on or before August 20, 2025 (30 days from and after July 16, 2025 was August 15, 2025 and five calendar days thereafter fell on August 20, 2025). No responses were received by that deadline. See *id.* at ¶4. Despite meet and confer efforts, no responses were received through the time of the filing of the motion. See *id.* at ¶5 and **Exhibit 2**.

#### Analysis

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b). The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777.

Having considered the moving papers and any further pleadings submitted, the Court makes the following findings as to the discovery requests at issue:

1. Defendant was duly served with the subject RFAs.
2. No timely response was made to the RFAs by Defendant.
3. Plaintiff engaged in meet and confer efforts and Defendant did not respond and did not provide responses to the RFAs.
4. No opposition or other responsive pleadings by Defendant have been filed with the Court.

#### Sanctions

Plaintiff does not seek imposition of sanctions.

#### Disposition

The Court further finds and orders as follows:

1. The Motion to Deem Admissions is GRANTED.
2. The truth of the facts recited in RFA Nos. 1 through 11 are DEEMED ADMITTED by Defendant.
3. The genuineness of the documents attached as Exhibits 1 and 2 to the RFAs, pursuant to RFA Nos. 12 and 13, are DEEMED ADMITTED by Defendant.
4. A proposed form of order was lodged with the Court which the Court shall execute and enter.

**11. 9:00 AM CASE NUMBER: L25-05638**

**CASE NAME: WELLS FARGO BANK, NA VS. JUSTIN CLEVELAND**

**\*HEARING ON MOTION FOR DISCOVERY MOTION FOR ORDER DEEMING TRUTH OF MATTER PLN REQUEST ADMISSIONS FILED BY PLN ON 09/09/2025**

**FILED BY: WELLS FARGO BANK, NA**

**\*TENTATIVE RULING:\***

The Court was advised at the Case Management Conference on November 17, 2025 that the matter has resolved by settlement agreement. The parties were to advise if this motion is dropped. **PARTIES TO APPEAR** unless the moving party requests the matter be dropped from calendar.

**12. 9:00 AM CASE NUMBER: MSL20-04573**

**CASE NAME: AMERICAN EXPRESS VS LEA**

**\*HEARING ON MOTION IN RE: MOTION TO ENTER JUDGMENT FILED BY PLN ON 09/02/2025**

**FILED BY: AMERICAN EXPRESS NATIONAL BANK**

**\*TENTATIVE RULING:\***

Plaintiff American Express National Bank ("Plaintiff") filed a Motion to Enter Judgment on September 2, 2025 ("Motion to Enter Stipulated Judgment after Default"). The Motion to Enter Stipulated Judgment after Default was set for hearing on November 25, 2025.

**Background**

The parties entered into that certain settlement agreement filed on September 6, 2022 (the "Settlement Agreement"), the terms of which included payment by the defendant Harold Lea ("Defendant") in the amount of \$14,832.89, to be paid in accordance with the terms thereof (the "Payment Terms and Conditions"). See Declaration of Plaintiff's Counsel filed September 2, 2025 ("Supporting Declaration"), ¶5 and **Exhibit A** thereto. As part of the Settlement Agreement, the parties entered into a stipulation for entry of judgment for said amount plus costs in the event of a default. *Id.*, **Exhibit A**, ¶10.

Defendant defaulted on the Payment Terms and Conditions. See Supporting Declaration,

¶7. Defendant failed to cure after notice. *Id.* at ¶8 and **Exhibit B** thereto.

After credit for amounts paid, there remains \$1,854.89 due and owing, plus costs of \$570.44. See Supporting Declaration, ¶7; see also Memorandum of Costs filed September 2, 2025.

#### Analysis

Defendant was duly served with the motion. The motion is unopposed.

#### Disposition

The Court finds and orders as follows:

1. The Court finds that Defendant was duly served with the motion.
2. The Court finds that Defendant is in default of the Settlement Agreement.
3. The Motion to Enter Stipulated Judgment after Default is GRANTED. Plaintiff shall have judgment against Defendant in the principal amount of \$1,854.89, plus costs of \$570.44, for a total of \$2,425.33.
4. Plaintiff's submitted form of order and/or money judgment against Defendant will be entered by the Court. Any prior dismissal entered herein against the Defendant is hereby set aside in connection with entry of such judgment.

**13. 9:00 AM CASE NUMBER: N25-1152**  
**CASE NAME: FORWARD FINANCING LLC VS. THOMAS GOWANS**  
**\*MOTION/PETITION TO COMPEL ARBITRATION**  
**FILED BY:**  
**\*TENTATIVE RULING:\***

Petitioner Forward Financing LLC ("Petitioner") filed a Petition to Confirm Contractual Arbitration Award on April 4, 2025 (the "Petition to Confirm"). The Petition to Confirm was set for hearing on July 29, 2025.

The Court previously continued the matter to November 25, 2025, 9:00 a.m. in Department 34 of the Court because no proof of service appeared of record on the Court's docket. Petitioner had not established that service was done in accordance with Code of Civil Procedure section 1290.4.

On July 30, 2025, Petitioner filed Proofs of Service of the Petition to Confirm and related documents as to TGLG, Inc., d/b/a Bloomin' Blinds of Contra Costa, and Thomas Gowans, an individual ("Defendants"). Notice of the continued hearing date on the Petition to Confirm was also given. See Notice of Hearing filed and served August 7, 2025.

#### Background

An arbitration was conducted between the parties as set forth in the Award of Arbitrator

dated May 2, 2025 (the “Arbitration Award”).

The Arbitration Award was issued as against both Defendants in the total amount of \$20,275.00, plus arbitration fees and costs of \$2,275.00.

#### Analysis

Any party to an arbitration in which an award has been made may petition the court to confirm, correct or vacate that award. Code Civ. Proc. § 1285; see CJER, *California Judges Benchbook: Civil Proceedings—Before Trial* (2025) (“CJER Civ. Pro.—Before Trial”), § 3.62. Such petition is a summary proceeding in the manner of and upon the notice provided by law for the making and hearing of motions, except that not less than ten (10) days’ notice of the date set for the hearing on the petition shall be given. Code Civ. Proc. § 1290.2.

The petition and a written notice of the time and place of the hearing thereof and any other papers upon which the petition is based must be served in the manner provided in the arbitration agreement for the service of such petition and notice. Or, if none is provided, service must be in the manner provided by law for the service of summons in an action as to service within the state (otherwise service outside the state shall be made by mailing the copy of the petition and notice and other papers by registered or certified mail). Code Civ. Proc. § 1290.4.

Once a party to an arbitration files a petition to confirm, correct or vacate an award, a response must be filed and served within ten (10) days after service of the petition, unless the court extends, or both parties agree to extend, this deadline. Code Civ. Proc. § 1290.6; see CJER Civ. Pro.—Before Trial, § 3.63.

Before confirming an award, a trial court has a duty, in order to follow the dictates of Code of Civil Procedure section 1283.4, to ensure that the arbitrator’s “award” is an “award” within the meaning of that statute. *Cinel v. Christopher* (2012) 203 Cal.App.4th 759, 767; see CJER Civ. Pro.—Before Trial, § 3.94.

The motion is unopposed and no response to the Petition to Confirm has been filed by Defendants seeking to modify or vacate the Arbitration Award. See Declaration of Petitioner filed August 18, 2025, ¶17.

The Court finds that the Arbitration Award was duly made in writing by the arbitrator(s) and constitutes a determination of all the questions submitted to the arbitrator(s), the decision of which was necessary in order to determine the controversy. Accordingly, the Court confirms the Arbitration Award as made.

#### Disposition

The Court finds and orders as follows:

1. The Petition to Confirm is GRANTED and the Arbitration Award is CONFIRMED.
2. Petitioner to submit a proposed form of Judgment for approval and entry by the Court. See Code Civ. Proc. § 1287.4.

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